

River Garden Inc, A Condominium

c/o Alliant Property Management, LLC.

13831 Vector Avenue * Fort Myers, Florida 33907

T: (239) 454-1101 * F: (239) 454-1147

AUTHORIZATION FORM

A COPY OF A VALID DRIVERS LICENSE OR PHOTO ID IS REQUIRED FOR ALL APPLICANT'S OVER THE AGE OF 18.

By signing, the applicant recognizes that River Garden Inc, A Condominium or its agent Alliant Property Mgmt., LLC. may obtain and verify a consumer credit report, along with an investigation of my background which may include information regarding to my character, banking history, criminal history, present and prior residential history and past and present employment history. I/We agree to indemnify and hold harmless the above Association and its agent, Alliant Property Mgmt., LLC., it's employees, Officers and Directors, affiliates, sub-contractors and agents from any loss, expense, or damage which may result directly or indirectly from information or reports furnished by Alliant Association Mgmt., LLC.

I/We hereby waive any privileges I/We may have with respect to the said information in reference to its release to the aforesaid party. Information obtained on this report is to be released to the Condominium Association Board of Directors and / or screening committee only.

Applicant Signature

Applicant Printed Name

Applicant Social Security Number

Applicant Date of Birth

Date Signed

Spouse's Signature

Spouse's Printed Name

Spouse's Social Security Number

Spouse's Date of Birth

Date Signed

**APPLICATION FOR OCCUPANCY
PLEASE PRINT**

COMPLETE ALL QUESTIONS AND FILL IN ALL BLANKS. PLEASE RETURN
WITH A COPY OF THE SIGNED **LEASE AGREEMENT** and applicable
APPLICATION FEES:

- **\$150.00 processing fee made payable to Alliant Property Mgmt.**
- **\$66 per person for credit & national criminal background fee payable to Alliant Property Mgmt.**
- **All fees are non-refundable.**

A CREDIT HISTORY AND BACKGROUND CHECK MAY BE ORDERED AND THE BOARD MAY CONDUCT AN INTERVIEW PRIOR TO APPROVAL. Please allow 30 days for approval after all information is received by Coastal Association Services, LLC.

Date of occupancy: _____

Address of Unit being Leased: _____

Number of people to occupy the unit: _____

Renter Information:

Lease Starting Date: _____ **Lease Ending Date:** _____

Name: _____ Date of Birth: _____

Drivers License Number: _____ Phone Number: _____

E-Mail Address: _____

Spouse's Name: _____ Date of Birth: _____

Drivers License Number: _____ Phone Number: _____

E-Mail Address: _____

Other Occupants:

Name: _____ Relationship: _____ Age: _____

Name: _____ Relationship: _____ Age: _____

Name of Current Owner _____

Name and Phone Number of Realtor: _____

In Case of Emergency Notify:

1. Name: _____ Phone: _____

Address: _____

2. Name: _____ Phone: _____

Address: _____

Do you have any Pets: Yes: _____ No: _____

If yes, What is the name of your Pet(s): _____

What type/breed is your pet(s): _____

How many pounds: _____

River Garden Condominiums DOES NOT ALLOW ANY PETS OVER 25 POUNDS. NO Pit bulls are accepted on the premises. Picking up your pet is MANDATORY on River Garden grounds and will be strictly enforced. This includes all grassy areas within the city easement.

Miscellaneous:

Do you own a water bed: Yes: _____ No: _____

Do you smoke: Yes: _____ No: _____

Do you own real estate: Yes: _____ No: _____

If yes, please explain where: _____

Have you ever been evicted from any rental premises: Yes: _____ No: _____

If yes, please explain: _____

Have you ever willfully and intentionally refused to pay rent when due: Yes: _____ No: _____

If yes, please explain: _____

Have you ever been convicted of a felony? Yes: _____ No: _____

If yes, please explain: _____

Personal Information

Vehicle Type: _____ Color: _____

License Plate Number: _____

Vehicle Type: _____ Color: _____

License Plate Number: _____

Nearest Relative Not Living with You:

Name: _____

Address: _____

Relationship: _____

Phone Number: _____

Two Work References:

Name: _____

Title: _____

Address: _____

Phone Number: _____

Name: _____

Title: _____

Address: _____

Phone Number: _____

Two Personal References:

Name: _____

Address: _____

Relationship: _____



Phone Number: _____

Name: _____

Address: _____

Relationship: _____

Phone Number: _____

Residence History (At Least 5 Years)

Present Street Address: _____

City, State, Zip: _____ Phone: _____

Your E-Mail Address: _____

Current Landlords Name: _____

Address: _____

Landlords Phone: _____ Dates of Residency: From _____ to _____

Prior Residency Address: _____

City, State, Zip: _____

Prior Landlords Name / Address: _____

Landlords Phone: _____ Dates of Residency: From _____ to _____

Employment & Bank References

Currently Employed: Yes: _____ No: _____ Retired: Yes: _____ No: _____

Employed By / Retired From: _____

Address: _____

Phone Number: _____

Length of Employment: _____ Monthly Salary: \$ _____

Spouse Employed By / Retired From: _____

Address: _____

Phone Number: _____

Length of Employment: _____ Monthly Salary: \$ _____

(If Less Than 5 Years At Present Employment)

Prior Employer _____

Length of Employment: _____

Address: _____

Phone Number: _____

Spouse's Prior Employer: _____

Length of Employment: _____

Address: _____

Phone Number: _____

Bank Reference (Name): _____ Phone: _____

Address: _____ How Long _____

Please attach two (2) letters of recommendation

I/We have received, read and understand the Governing Documents/Rules & Regulations for River Garden Inc, A Condominium. Further, I/We agree to honor and abide by all of the provisions according to Governing Documents/Rules & Regulations for River Garden Inc, A Condominium.

I/We certify that all of the above furnished information is true and accurate, should there be any discrepancies and/or false information provided, I understand that this application is null and void.

As required by law, this information is kept strictly confidential.

Applicant Name: _____

Applicant Signature: _____

Spouses Name: _____

Applicant Signature: _____

River Garden Inc, A Condominium
Rules and Regulations Revision
5/15/18

In addition to the other provisions of the By-Laws, the following rules and regulations together with such additional rules and regulations as may hereafter be adopted by the Board of Directors, shall govern the use of the condo units located on the property and the conduct of all residents thereof.

CONDO USE

- Condo units shall be used for residential purposes only. Use of condo units shall be consistent with the existing law. Condo units may not be used for any business or commercial use whatsoever.
- No "FOR SALE" or "FOR RENT" signs or other displays or advertising shall be permitted on any part of the common elements or units.
- Owners shall not use or permit use of their premises in any manner that would be disturbing or be a nuisance to other owners, or in such away as to be injurious to the reputation of the property.
- Smoking is not allowed within 25 feet of any building or on the dock.
- No awning, canopy, shade, window guard, ventilator, fan, air conditioning device, radio or television antenna may be affixed to or placed upon the exterior walls or any part thereof.
- Decorative door wreaths/swags are allowed on front doors. If the decoration is holiday-themed, it may only be hung during the month of that holiday. No other exterior decorations are allowed.
- Lanais may not be used as storage areas. Storage areas within each building under stairways, as well as individual storage units in the clubhouse are for that purpose.

COMMON AREAS

- Common walks and common areas shall be kept clear of obstructions, rubbish, debris and other unsightly materials.
- No clothes, sheets, blankets, laundry of any kind or other articles shall be hung or exposed from any unit or common element. Nothing shall be hung or displayed on the building railings or outside walls of the buildings.
- Residents may not keep any chairs, tables, benches, grills, pavers, bird/squirrel feeders or other articles upon any common element. Lawn or plastic chairs are permitted during daylight hours and should be stored in storage units when not in use. After written notice and one week to remove the unacceptable material, the Management Agency may dispose of it. Any costs will be added to the owner's monthly maintenance fee.
- All garbage needs to be properly bagged, and all boxes need to be collapsed and put in the recycling bins. All glass and recyclable materials should be placed in the recycling bins.
- At no time are renovation materials, household appliances, or furniture to be placed in the dumpster. Please notify the Management Agency of the need to arrange for a special pickup. Place all large items next to the dumpster no sooner than one day prior to pickup.
- The Association is concerned with the potential safety for all individuals on its common grounds. The Association requires that an adult accompany children under the age of 12 in any areas where there are safety concerns, and that the adult supervise the activities of the young person, especially in the dock, seawall, clubhouse, and parking areas. Children five (5) years of age and younger must wear a personal flotation device.

on the dock and in the seawall area.

- Loud noise and disruptive behavior is prohibited. Visiting guests need to respect the privacy of residents and the common areas of River Garden. Guests will not be allowed to disturb the quiet for residents. Remember that all bedroom windows are facing the parking lot so be respectful by keeping your voices, music, and car noise to a minimum. The Management Agency will contact the owner immediately following receipt of a complaint and, if the situation is not alleviated, a fine may be assessed.
- Any resident having a party must keep the noise to a minimum. No noise is allowed on the common grounds after 10:00 PM. A fine may be given to anyone who continues with excessive noise after 10 p.m. A phone call will be made to the unit owner and if not complied with the owner/tenant may be fined.

DOCK/BOATS

- Owners who wish to have their boat reside at River Garden must have on file with the Management Agency their proof of current boater's insurance or proper insurance that will cover damage incurred to River Garden property by their vessel. Any tenants or guests docking boats at the Condominium pier will be required to furnish the Board with evidence of liability insurance for the boat. The Board has the right to remove the vessel if no insurance documentation is filed.
- All boats must be tied securely and allow space for other boats as needed. Boats must be properly tied down with bumpers/fenders to protect the pier pylons.
- No modifications to the dock are allowed.
- The owner of the boat is responsible for any damage to the dock.
- Any boat or owner creating a nuisance to other residents will be notified with said grievance and asked to comply by the Management Agency. If the nuisance continues the unit owner will be fined and legal action will be taken by the Board. The Board will remove the boat, and any fees incurred will be placed on the unit owner.
- All vessels must be maintained in seaworthy condition, with current Florida license, capable of being removed in the event of an emergency that might damage the dock.
- Boat owners will notify the Management Agency of the individual responsible for their boat during their absence.
- Removal of abandoned or derelict boats will be at the expense of the unit owner.
- Boat owners are to keep all lines and equipment in such a manner that they will not interfere with others using the dock.
- Dockside occupancy is not permitted.
- Guest boats are allowed to be docked for a 48-hour period or less, and only when space allows. A certificate of current boater's insurance must be filed with the Management Agency prior to the docking of the visiting boat.
- Kayaks can be stored at River Garden on a first-come, first serve basis. Kayaks must be placed on the rack provided. If outdoor space is unavailable, kayaks must be stored within the owner's storage locker or off site.
- The pier is for quiet enjoyment. Owners are responsible for their guests. The owner will be notified of any guest being a nuisance. if the situation is not rectified, the owner may be fined.
- Anyone fishing off the dock must make sure they clean up after themselves and do not leave any fishing line, hooks, garbage or fishing paraphernalia on the dock or in the water. At no time are they to leave fishing gear unattended on the dock. At no time is anyone allowed to cut fish or bait on the wood of the dock, including seats, railing, etc. If the dock sink is used for cleaning fish, you must clean up after yourself and

take your garbage with you. There must be no dumping of fish or fish guts into the water off the dock. Violators will receive one warning only. A fine will be incurred if the rule is not followed.

- Anyone found to be tampering with the lighting or damaging the pier will be fined the highest amount allowed by law. Owners will be notified and assessed a fine, repair bill cost and any legal fees that may be incurred if not handled.

LANDSCAPING

- The Board may appoint a Landscape Liaison to work with homeowners on beautifying the property. Landscaping improvements will be overseen by the Landscape Liaison.
- Homeowners, with the approval of the Landscape Liaison, may plant and/or transplant native plants for the purpose of improving the beauty of the property. This is strictly voluntary as there is no budget or labor attached to this item. Changes impacting the architectural integrity are not within the realm of the Landscape Liaison and/or volunteers.

PETS

- Unit owners may keep one (1) OR two (2) pets. Only dogs or cats are allowed. No such pet may exceed twenty-five (25) pounds at adult weight. Dogs are not allowed to run free on the condominium property and must be leashed or carried at all times when outside the unit. The Board of Directors is empowered to order and enforce the removal of any pet which becomes a source of unreasonable annoyance to other residents of the condominium.
- Pit bull dogs or other similar breeds or mixed breeds which may, in the sole discretion of the Board of Directors, have the potential for vicious or dangerous behavior are prohibited. No pet may be kept, bred, or maintained for any commercial purpose whatsoever.
- No reptiles, rodents, amphibians, poultry or livestock may be kept in/on the condominium property.
- Owners must pick up all solid waste of their pets and dispose of such waste appropriately.
- No pet may be kept on a lanai when its' owner is not in the unit.
- Upon three (3) written notices of violation of this section, the Board shall have the right to require the permanent removal of such pet from the condominium complex, and shall be entitled to such relief as may be necessary to accomplish this order should the owner fail to remove such pet after receipts of notice to do so.

RENOVATIONS/REMODELING

- No structural changes or alterations shall be made in any condo unit, except by approval of the Board of Directors. All unit owners planning to do renovation work must notify the Management Agency of the work to be done. Work must be performed by a qualified, licensed and insured contractor or the owner. Permits required by the city must be obtained and posted.
- Any structural change or alteration from the original screened porch design of the corner units will be the unit owner's responsibility to repair and maintain in a uniform manner with other unit porch enclosures. Any changes/alterations must go through the Board approval process.
- Unit screened doors, windows/screens and porches/screens are to be maintained and kept in presentable condition by the owner. If these are left damaged, the Association may repair the damage and charge the repair amount to the owner's monthly fee.
- Owners may replace doors and windows after submitting specifications and corresponding documents to

the Association and gaining board approval.

- Any second floor unit owner who has put in tile/hardwood/laminate flooring and did not put down a mandatory soundproof insulation rating of sound transmission coefficient of at least 70 must put down padded carpeting in high traffic areas if complaints are received by the Management Agency about incessant noise. Non-compliance will result in fines and legal action. Any second floor unit owner who is going to install new flooring as of July 2009 must also install a mandatory soundproof insulation layer under the flooring.

SAFETY

- Exterior sidewalk pole lights and building walkway lights must be on from dusk to dawn for safety reasons. Tampering with the lighting is prohibited.
- Barbecues are not to be used on Association grounds. In consideration of other units please barbecue at the edge of the property. Owners may use the Association gas grill in the clubhouse picnic area. It is stored in the work room located in the clubhouse building.
- All homeowners are required to turn off water to their unit when away for 48 hours or longer. A water heater leak sensor/alarm must be put on each water heater. The Association will conduct annual inspections of all unit plumbing.
- Seasonal owners, when absent, must have their units checked/inspected monthly. It is recommended to keep a log of each visit.
- Hurricane Shutters: Subject to provision of Florida State Statute, Section 718.3026, a condominium board "shall not refuse to approve the installation or replacement of hurricane shutters conforming to the specifications adopted by the board." Specifications: The hurricane shutters should be aluminum accordion shutters with a white header. The storm panels should be no less than .040 gauge and code approved by South Florida regulators to withstand winds up to 160+ miles per hour or current, up-to-code standards. New hurricane panels that meet current standards and are approved by the Board are permitted. Hurricane shutters must be removed within one week of the storm.

SALES AND RENTALS

- Realtors are allowed to place an "Open House" sign by the street outside the property, as well as one in front of the unit, for the duration of the Open House. Signs must be removed at the conclusion of the Open House. Thus signs may not be posted overnight.
- No unit will be rented or leased more than once in a year. Extenuating circumstances, such as an eviction of a tenant, must be brought before the Board for consideration on an individual basis. Sales and Rental Guidelines are included in a separate document found on the Management Company website.
- No owner or tenant may move into a unit without fully completing the application process and obtaining board approval. Owners whose monthly fees and/or assessments are in arrears may not sell or rent their unit until debts are fully paid to the Association.
- The Board must receive **complete** information to process applications which includes; fully completed application, criminal background check and /credit report, copy of driver's license or state ID, and two letters of recommendation. The Board has 30 days to review application.
- Verification phone calls will be made during normal business hours Monday-Friday.
- If the application is questionable the Board may request copies of last two pay stubs & most recent W-2 form.
- Owners shall screen their tenant prior to submitting an application to save the Association time and money.

VEHICLES/PARKING

- No oversized vehicles (those exceeding 23' in overall length) including motor-homes, boats, trucks, or trailers shall be parked for more than a 48-hour period on the common elements of the Condominium property or guest parking spaces.
- Bicycles, motorcycles/bikes, or scooters must be parked in guest parking spaces or the owner's assigned parking space. No such vehicles may obstruct or be parked on common areas or building walkways or in front of gates at any time. Bicycles are not to be ridden on River Garden Association's lawns, sidewalks and parking area for safety reasons.
- Each unit shall have one assigned parking space. Residents with more than one vehicle may park the additional vehicle in "guest" parking, as space permits or on the pavement out in front of the clubhouse. All vehicles must be properly licensed.
- Owners of vehicles/motorcycles which have leakage of any kind will be instructed to have the problem repaired. It will be the owner's responsibility to clean the affected area.
- No repair work on cars/motorcycles/bikes or any other object is allowed in the parking lot or common grounds of the condominium complex, except for battery replacement or changing tires. Owners will be notified of violations by the Management Agency and, if the actions continue after the warning by the Management Agency, the owner will be required to pay a fine.
- Any car in the parking lot that is in disrepair (inoperable, flat tire, etc.) or with expired tags will be given one written warning and then the vehicle will be towed at the owner's expense.
- Residents of vehicles/motorcycles in another owner's assigned parking space are strictly prohibited unless written permission is given by unit owner.
- Residents will not cause their vehicle/motorcycle to disturb the peace and quiet of others or cause excessive noise.
- Speed limit is 5 miles per hour in parking lot area and strictly enforced.
- There shall be no parking ever on any grassy areas on the property. Moving trucks, vans or trailers are not allowed on the lawns. Do not park in front of gates.

COMMENTS/COMPLAINTS/QUESTIONS

Owner's comments, complaints, suggestions, inquiries, etc., will be addressed to the Management Agency at the address and phone number provided. After receipt of any owner's written comments, complaints, suggestions, inquiries, etc. they will be shared with the Board Contact.

RULES VIOLATIONS

Beginning June 1, 2018, a fining committee will be in place per state statute (718.303). "A fine or suspension levied by the board of administration may not be imposed unless the board first provides at least 14 days' written notice and an opportunity for a hearing to the unit owner and, if applicable, its occupant, licensee, or invitee. The hearing must be held before a committee of other unit owners who are neither board members nor persons residing in a board member's household. The role of the committee is limited to determining whether to confirm or reject the fine or suspension levied by the board. If the committee does not agree, the fine or suspension may not be imposed."

TERMS & CONDITIONS

All residents must agree to abide by these House Rules by written and signed consent of this agreement when

interviewing for purchase/lease of a unit. Likewise, and from time to time, when the rules are amended or new rules adopted, residents will be provided with a new set of rules which owners tenants also agree to abide by and which will require an updated signed contract. It is the unit owner’s and tenant’s responsibility to be familiar of the Rules and Regulations.

Signature of Tenant/Owner

Date

Signature of Tenant/Owner

Date